

Civ. Proc. § 871.20(a).) Plaintiff has not alleged any period of tolling expressly permitted by section 871.21(c). And, unlike statutes of limitations, statutes of repose are generally not subject to any other forms of statutory or equitable tolling. (*PGA W. Residential Ass'n, Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 178.) It does not appear reasonably possible for Plaintiff to cure this defect by amendment.

Plaintiff has not demonstrated any unconstitutionality in applying the statute of repose to his case. Section 871.21 was signed by the Governor on September 29, 2024 and became effective on January 1, 2025. To the extent that Plaintiff claims that the law immediately imposed a statute of repose that cut off a remedy he was already entitled to, he had three months to file an action before the law could take effect. Plaintiff makes no showing that the three months was not a reasonable time to avail himself of his remedy before the statute took effect. (*Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 123.)

Plaintiff's sixth cause of action for fraudulent inducement is barred by the statute of limitations. When a complaint shows, on its face, that a cause of action would be barred without the benefit of the delayed discovery rule, the plaintiff "must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence." (*McKelvey v. Boeing North American, Inc.* (1999) 74 Cal.App.4th 151, 160.) Additionally, any facts supporting fraudulent concealment, equitable tolling, or estoppel must be specifically pleaded. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) Plaintiff alleged that Defendant concealed or failed to disclose that the vehicle was equipped with a defective engine prior to the sale of the vehicle on October 30, 2017. (FAC, ¶¶ 7, 94.) Consequently, absent delayed discovery or some other exception or period of tolling, the statute of limitations had run by October 30, 2020. (Code Civ. Proc. § 338(d).) Plaintiff has not adequately pleaded facts establishing the time and manner of discovery and his inability to make earlier discovery despite reasonable diligence. Plaintiff has also failed to sufficiently plead facts supporting the various theories of tolling.

Plaintiff has not met his burden of showing "in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

Motion to Strike

The motion to strike is denied as moot.

JAMAL CALVIN SANDIDGE, et al. v. MICHAEL DEAN BURLEIGH, et al.
Case No. CU26-00145

Motion to Set Aside and Vacate Dismissal of Plaintiff Takora Tazaneek Willform Pursuant to California Code of Civil Procedure 473(B)

TENTATIVE RULING

Counsel and Plaintiff Tokora Tazanek Willform are to appear.

SUNDT CONSTRUCTION, INC. v. NORTHERN CALIFORNIA OFFICERS COMMUNITY dba PARADISE VALLEY ESTATES Case No. FCS059237

GLUMAC's Motions to Compel PERKINS's Further Responses to Form
Interrogatories and Requests for Production

TENTATIVE RULING

In two distinct motions Cross-Defendant GLUMAC moves to compel Cross-Defendant PERKINS EASTMAN ARCHITECTS, D.P.C. ("PERKINS") to further respond to GLUMAC's form interrogatories, set one and requests for production, set one.

Timeliness of Motion. GLUMAC filed these motions on May 27, 2026. Per its counsel's declaration, it received PERKINS's allegedly deficient discovery responses on April 8, 2026. (Declaration of Paraskevi M. Batsikas in Support of Motion to Compel Further Responses to Requests for Production ("Batsikas Dec.") at ¶ 5, Exhibit B.) Per Code of Civil Procedure sections 2030.300, subdivision (c) (for interrogatories) and 2031.310, subdivision (c) (for inspection demands) GLUMAC had forty-five days after service of the responses to move to compel further responses. Forty-five days after April 8, 2026 was May 23, 2026, a Saturday. PERKINS served its responses by email, which per Code of Civil Procedure section 1010.6, subdivision (a)(3)(B) extended the deadline to file the motion to compel by two court days. (Batsikas Dec. at ¶ 5, Exhibit B [showing method of response].) Monday, May 25, 2026 being Memorial Day, the deadline was accordingly moved two court days to May 27, 2026. GLUMAC's filings were timely.

Meet and Confer Efforts. The court first considers the adequacy of the moving party's efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. GLUMAC's counsel's attached declaration in support of the motion to compel further responses to requests for production (representative for both motions) states that counsel served the discovery requests at issue on February 4, 2026.